

25STCV21646 25STCV21646

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV21646

JESSICA

IBARRA, et al. vs 3621 PACIFIC AVE SAN PEDRO, LLC, et al.

August

17, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PETITIONER/PARENT/GUARDIAN AD LITEM JESSICA IBARRA'S PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR.

RULING:

The Court grants the Petition
and will sign and file the proposed form Orders received on July 24, 2026.

Petitioner to give
notice.

I.

BACKGROUND

On April 2, 2026, JESSICA
IBARRA and AALIYAH TOUTAR (Plaintiffs) filed a First Amended Complaint (FAC) against
3621 PACIFIC AVE SAN PEDRO, LLC and BEACH FRONT PROPERTY MANAGEMENT, INC.
(Defendants), listing Causes of Action for:

1.

BREACH OF CONTRACT

2.

BREACH OF IMPLIED WARRANTY OF HABITABILITY

3.

NUISANCE

4.

NEGLIGENCE

5.

WRONGFUL EVICTION

6.

VIOLATION OF THE LOS ANGELES TENANT ANTI-HARASSMENT ORDINANCE "TAHO".

Plaintiffs allege that, after
renting in February 2011, in August 2023, they noticed uninhabitable living
conditions including dangerous levels of toxic mold from a rain leakage, throughout
3621 South Pacific Avenue #10, San Pedro. They also allege that they vacated
the property in December 2024, because Defendants, as owners/managers, would
not act after Plaintiffs' repeatedly complained.

On July 24, 2026, Petitioner
filed a renewed Petition for Approval of a Minor's Compromise for Claimant AALIYAH
TOUTAR, age 14, who suffered living in uninhabitable conditions but was not
injured and completely recovered.

Petitioner now seeks
approval of \$6000.00 in settlement to the minor, less \$1,500.00 attorneys'
fees, leaving a balance of \$4,500.00. The total settlement amount is \$76,000.00.

II.
LEGAL STANDARD

Petitions for approval of
minors' compromises shall fully disclose all information that has any bearing
on the compromises' reasonableness. (Chui v. Chui (2022) 75 Cal.App.5th
873, 899 [citing Cal. Rules of Court, rule 7.950].)

A petition for court
approval of a compromise under Code of Civil Procedure section 372 must comply
with California Rules of Court rules 7.950, 7.951, and 7.952. (See Cal. Rules
of Court, rule 3.1384(a).) Some of the Probate Code and the Code of Civil Procedure
apply to compromises as to minors' claims. (See Cal. Rules of Court, rule
7.950.) In large part, the Local Rules incorporate by reference the California
Rules of Court and statutory provisions. (See Super. Ct. LA County, Local
Rules, rule 4.115 et seq.)

Regarding disbursements,
courts may order that:

1. Those
funds shall not be disbursed without further order of the courts (id.); or,
2. The
depository shall permit the withdrawal of funds by minors at ages of majority,
without further order of the courts, based on findings that minors will attain
the age of majority on a definite date.
(Cal. Rules of Court, rule 7.953(b).)

Courts may consider
evidence presented and determine reasonable amounts to be paid to attorneys

representing minors. (Curtis v. Fagan (2000) 82 Cal.App.4th 270, 273; Padilla v. McClellan (2001) 93 Cal.App.4th 1100, 1106.) In cases involving the compromise of a pending action of a minor, the court must determine an award of attorney fees under California Rules of Court, Rule 7.955. (Gonzalez v. Chen (2011) 197 Cal.App.4th 881, 888.)

III.

ANALYSIS

Most importantly, courts must decide whether to approve a compromise by determining if petitioners, such as guardians, are acting in the best interests of minors or incompetent persons. (E.g., CCP §372(a); Scruton v. Korean Air Lines Co. (1995) 39 Cal.App.4th 1596, 1603-07.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests.... [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Sup. Ct. (1994) 23 Cal.App.4th 1378, 1382.) Judicial discretion in approving petitions for minors' compromises, and ordering distributions, and local court policies, must be applied in the best interests of minors, in a case-by-case method, tailored to the circumstances. (Christensen v. Sup. Ct. (1987) 193 Cal.App.3d 139, 142-44.)

Here, the Court finds that the proposed compromise is in the best interests of the Claimant, because many other like cases involving uninhabitable living conditions without lingering injuries, have settled for approximately \$6,000.00 allocated to the minors.

IV.

CONCLUSION

Accordingly, the Court grants the Petition.